

Diabetic Foot Ulcer Dataset: Licence to Use

BETWEEN

Lancashire Teaching Hospitals (LTH)

Manchester Metropolitan University (MMU)

Organisation:.....

Lead Researcher:.....

Role / Position: Director / Professor / Dean / Head of Department / Lecturer

Please select

Named Permitted Researchers:

Name	Email Address

The expression “**Named Permitted Researchers**” includes other persons given written consent by MMU to access or use the DFU Dataset under clause 1.

ALL RIGHTS IN THIS AGREEMENT ARE:

- **ONLY IN RESPECT OF THE DFU DATASET IN EXACTLY THE STATE AND FORM PROVIDED BY MMU TO THE LEAD RESEARCHER OR A NAMED PERMITTED RESEARCHER**
- **ONLY GRANTED TO THE LEAD RESEARCHER AND THE NAMED PERMITTED RESEARCHERS AND NOT TO ANY OTHER PERSON WHATSOEVER**

Introduction:

- a. The goal of the Diabetic Foot Ulcer Dataset (**DFU Dataset**) is to develop new techniques, technology, and algorithms for the automatic interpretation and analysis of ulcers.
- b. LTH owns the raw data and diabetic foot ulcer (**DFU**) photographs within the DFU Dataset including all intellectual property rights in such raw data and photographs, and is the principal distributor of the DFU Dataset.
- c. MMU is involved in an ongoing effort to develop the DFU Dataset and provide the compatible version of ground truth annotations for computer algorithm.
- d. The DFU Dataset is meant to aid research efforts in the general area of developing, testing and evaluating algorithms for DFU analysis.
- e. All intellectual property rights in and to the DFU Dataset are the property of LTH and MMU.
- f. To advance the state-of-the-art in DFU research and analysis, the DFU Dataset is made available to members of the research community who satisfy MMU's and LTH's due diligence requirements and sign this Agreement agreeing to the conditions and restrictions listed below.

AGREEMENT

1. **Personal: the rights granted in this Agreement are personal to the Lead Researcher and the Named**

Permitted Researchers and they shall NOT sub-licence, sub-contract, assign, or transfer in any way to any other person any of the rights and obligations under this Agreement without the prior written consent of MMU (such consent to be at MMU's absolute discretion).

2. Any reference in this Agreement to “**any other person**” is to any other person whatsoever, including (without limitation) any third party, the Organisation, any other person within the Organisation (whether in the same or a different faculty, department or organisational unit or otherwise) or any clinician, company or organisation with who the Lead Researcher or a Named Permitted Researcher or the Organisation has a collaboration or other arrangement. A reference in this Agreement to a “**person**” is to a natural person or a corporate or unincorporated body or organisation (whether or not having separate legal personality).
3. By entering this Agreement the Lead Researcher and the Named Permitted Researchers each confirm that they are acting on their own behalf or on behalf of the Organisation and not for the benefit of any other person or organisation.
4. **Lead Researcher:** all communications by the Lead Researcher or a Named Permitted Researcher to LTH or MMU under this Agreement shall be from the Lead Researcher or copied to the Lead Researcher.
5. **Organisation Responsibility:** in consideration of LTH and MMU making the DFU Dataset available to the Organisation's Lead Researcher and Named Permitted Researchers on the terms of this Agreement, the Organisation agrees that it is entirely responsible for procuring the due and punctual performance, observance and discharge by the Lead Researcher and the Named Permitted Researchers of all the obligations under this Agreement and the Organisation is jointly and severally liable for, and shall indemnify, LTH and MMU for any breach of any of their obligations under this Agreement.
6. **Permitted Use:**
 - 6.1 Subject to compliance in full with all the terms and conditions of this Agreement, the Lead Researcher and the Named Permitted Researchers are granted (subject to clause 6.2) a non-exclusive, non-sub licensable, and non-transferable license during this Agreement to access and use the DFU Dataset solely for the permitted use set out in Appendix A (**Permitted Use**) and the Lead Researcher and the Named Permitted Researchers shall NOT access or use the DFU Dataset in any other way, whether commercial or non-commercial or otherwise.
 - 6.2 The Licence of the DFU Dataset under clause 6.1 is free of charge except access to the full resolution and fully labelled 2,000 images (with segmentation binary masks) within the DFU Dataset for which the Lead Researcher shall pay MMU in advance an administration fee of one hundred pounds sterling (£100) following receipt of which in cleared funds MMU will grant the Researcher and the Named Permitted Researchers access to the same.
7. **Redistribution:** Without prior written approval from both LTH and MMU (at their absolute discretion), **the Lead Researcher and the Named Permitted Researchers shall NOT disclose, distribute, publish, copy, release or disseminate in any other way the DFU Dataset in any way or form whatsoever, in whole or in part, whether for profit or not.**
8. **Modification and Commercial Use:** Without prior written approval from both MMU and LTH (at their absolute discretion), **the Lead Researcher and the Named Permitted Researchers shall NOT modify in any way the DFU Dataset.** In this clause “**modify**” shall have its widest possible meaning, including (without limitation) any change, alteration, re-labelling, creation of a derivative work, removal of a proprietary notice or any other modification whatsoever, however minor.
9. **Right for MMU and LTH to terminate for breach:** If there is any breach (however minor) of this Agreement by the Lead Researcher or a Named Permitted Researcher or the Organisation then, without prejudice to any other rights and remedies, MMU and LTH can by written notice to the Lead Researcher terminate this Agreement with immediate effect.

10. **Requests for Consent:** All requests for consent under this Agreement will be made in writing to the DFU Dataset Principal Investigators at the email addresses specified at the end of this Agreement.
11. **Publication Requirements:** Where permitted to publish by prior written approval of LTH and MMU, publication will be restricted to paper, web-based data and image data, for scientific purposes only.
12. A copy of ANY reports and papers that have prior written approval from MMU and LTH for public or general release that use the DFU Dataset should be forwarded immediately upon release or publication to the DFU Dataset Principal Investigators at the email addresses specified at the end of this Agreement (or such other email address as MMU or LTH notify).
13. **Intellectual Property Rights Ownership:** the Lead Researcher and the Named Permitted Researchers and the Organisation acknowledge that all rights, title and interest, including all intellectual property rights, in and to the DFU Dataset are the property of LTH and MMU, as the case may be; and the Lead Researcher and the Named Permitted Researchers shall have NO rights in or to the DFU Dataset other than the right to use it strictly in accordance with the express terms of this Agreement.
14. The Lead Researcher and the Named Permitted Researchers assign to MMU and LTH with full title guarantee all intellectual property rights arising from the use of the DFU Dataset, by way of future assignment. The Lead Researcher and the Named Permitted Researchers shall procure that any necessary third party shall, at the Organisation's cost, promptly execute such documents and perform such acts as may reasonably be required for the purpose of giving full effect to this Agreement. The intellectual property rights assigned to MMU and LTH shall be deemed to be included in the DFU Dataset from the date when such rights arise.
15. Except for the limited rights and licenses expressly granted under this Agreement, nothing in this Agreement grants, by implication, waiver, estoppel, or otherwise, to the Lead Researcher, the Named Permitted Researchers, the Organisation or any third party any intellectual property rights or other right, title, or interest in or to the DFU Dataset.
16. **Citation/Reference:** All documents and papers that use the DFU Dataset, will acknowledge the use of the DFU Dataset by including citations to the following, and such other citations as MMU may from time to time notify to Lead Researcher in writing:

Kendrick, C., Cassidy, B., Joseph, O'Shea, C., Fernandez, C.J., Chacko, E., Jacob, K., Reeves, N.D. and Yap, M.H., 2022. *Translating Clinical Delineation of Diabetic Foot Ulcers into Machine Interpretable Segmentation*. arXiv:2204.11618

Yap, M.H., Cassidy, B., Pappachan, J.M., O'Shea, C., Gillespie, D. and Reeves, N.D., 2021. *Analysis towards classification of infection and ischaemia of diabetic foot ulcers*. In *2021 IEEE EMBS International Conference on Biomedical and Health Informatics (BHI)* (pp. 1-4). IEEE.

Cassidy, B., Reeves, N.D., Pappachan, J.M., Gillespie, D., O'Shea, C., Rajbhandari, S., Maiya, A.G., Frank, E., Boulton, A.J., Armstrong, D.G. and Najafi, B., 2021. *The DFUC 2020 dataset: Analysis towards diabetic foot ulcer detection*. *touchREVIEWS in Endocrinology*, 17(1), p.5.

Goyal, M., Reeves, N.D., Rajbhandari, S. and Yap, M.H., 2018. *Robust methods for real-time diabetic foot ulcer detection and localization on mobile devices*. *IEEE journal of biomedical and health informatics*, 23(4), pp.1730-1741.

Goyal, M., Reeves, N.D., Davison, A.K., Rajbhandari, S., Spragg, J. and Yap, M.H., 2018. *Dfunet: Convolutional neural networks for diabetic foot ulcer classification*. *IEEE Transactions on Emerging Topics in Computational Intelligence*, 4(5), pp.728-739.

Goyal, M., Reeves, N.D., Rajbhandari, S., Ahmad, N., Wang, C. and Yap, M.H., 2020. *Recognition of ischaemia and infection in diabetic foot ulcers: Dataset and techniques*. *Computers in biology and medicine*, 117, p.103616.

17. **Confidentiality:** The Lead Researcher and the Named Permitted Researchers each undertake that they shall NOT at any time disclose to any person any confidential information concerning the DFU Dataset, or any other confidential information of MMU or LTH obtained under or in connection this Agreement (whether before or after the date it is signed), except as expressly permitted in the exercise of their rights under, and strictly in accordance with, this Agreement.
18. **Termination:** Without prejudice to any other rights of termination or any other rights or remedies, MMU may at any time terminate this Agreement (wholly or in part) with immediate effect by written notice to the Lead Researcher.
19. **Consequences of Termination:** Upon expiration or earlier termination of this Agreement, the rights granted hereunder will immediately terminate, and the Lead Researcher and the Named Permitted Researchers shall cease using and delete, destroy, or return the original and all copies of:
- (i) the DFU Dataset;
 - (ii) all data, information and other materials provided to the Lead Researcher and the Named Permitted Researchers, or anyone else by MMU or LTH in connection with this Agreement, in whatever form, whether within the DFU Dataset or otherwise (**Data**); and
 - (iii) all research, materials or data derived or adapted from, or combined or aggregated (wholly or in part) with, the DFU Dataset or the Data.
20. The obligation to delete in paragraph 19 includes (without limitation) the obligation to delete the same from all or any information technology system or systems used, owned or operated by the Lead Researcher and the Named Permitted Researchers or the Organisation or anyone else which has received or stored the same. Any electronic data shall be considered deleted when it has been put beyond use by any user of such system.
21. **Assignment:** MMU or LTH may at any time assign, transfer, mortgage, charge, sub-contract, declare a trust of or deal in any other manner with any of its rights and obligations under this Agreement without the consent of the Lead Researcher or the Named Permitted Researchers or the Organisation.
22. **No Warranty:** THE DFU DATASET IS PROVIDED "AS IS" AND LTH AND MMU MAKE NO REPRESENTATIONS AND EXTEND NO WARRANTIES OF ANY KIND, WHETHER EXPRESS, STATUTORY OR IMPLIED WHETHER AS TO MERCHANTABILITY OR FITNESS FOR A PARTICULAR PURPOSE, OR THAT THE USE OF THE DFU DATASET WILL NOT INFRINGE ANY PATENT, COPYRIGHT, TRADE- MARK, OR OTHER PROPRIETARY RIGHTS OR OTHERWISE.
23. **Writing:** any reference to writing in this Agreement shall be by email or hard copy.
24. **Notices:** All notices hereunder must be in writing and addressed to the parties as follows:
- Notices to MMU and LTH:** The Director of Legal, Manchester Metropolitan University, All Saints Building, Grosvenor Square, Manchester M15 6BH
Marked for the attention of the Director of Legal
- Notices to the Lead Researcher or the Named Permitted Researchers or the Organisation:** Lead Researcher at the email or Organisation address given on the signing page.
25. **Entire Agreement:** This Agreement, together with any other documents incorporated or referred to herein, constitutes the sole and entire agreement of the parties with respect to the subject matter of this Agreement and supersedes all prior understandings, agreements, and representations and warranties, both written and oral, with respect to such subject matter.

26. **Variation:** No amendment to or modification of this Agreement is effective unless it is in writing and signed by an authorised representative of MMU and LTH.
27. **Governing Law:** This Agreement and any dispute or claim arising out of or in connection with it or its subject matter or formation (including non-contractual disputes or claims) shall be governed by and construed in accordance with the law of England and Wales.
28. **Jurisdiction:** Each party irrevocably agrees that the courts of England and Wales shall have exclusive jurisdiction to settle any dispute or claim arising out of or in connection with this agreement or its subject matter or formation (including non-contractual disputes or claims).

Appendix A: Permitted Use

The following non-commercial academic research, teaching and education:

- Research into DFU analysis and other branches of related research
- Use of the DFU Dataset to train and test the computer algorithms
- Use of the DFU Dataset to carry out MMU's Diabetic Foot Ulcers Grand Challenges
- Use of the DFU Dataset to report results for academic publication and academic research presentation
- Use of the DFU Dataset for education purposes.

The Organisation is not permitted to use the DFU Dataset for any commercial purposes whatsoever or for any clinical purposes.

Signed by the Lead Researcher for himself/herself and as duly authorised representative for and on behalf of the Organisation and the Named Permitted Researchers.

By receipt of the DFU Dataset by a Named Researcher, or any use of the DFU Dataset by a Named Researcher, that Named Permitted Researcher is deemed to have confirmed their acceptance of the terms of this Agreement and the authority of the Lead Researcher to sign on their behalf.

LEAD RESEARCHER

Signature:

Name (please print):

Date:

Email:

Organisation:

Address:

DFU Dataset Principal Investigators:

Moi Hoon Yap, Neil Reeves and Rajbhandari Satyan

To apply, please upload **a scanned signed full copy** and apply through:

<https://script.google.com/macros/s/AKfycbxTcYEQlyP7qkb6RBs0pC6Ad23R9-CiRIXC9zAvEqNf4SYCYLrGLwELiA/exec>

We only accept application through the online form. If you have any issues with the online form, contact:

dfuc.mmu@gmail.com